

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE AMENDING CHAPTER 2.29, COMMUNITY SERVICE OFFICERS, OF TITLE 2, ADMINISTRATION AND PERSONNEL, OF THE MUNICIPAL CODE OF THE CITY OF CHEYENNE, WYOMING."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That Chapter 2.29, Community Service Officers, of Title 2, Administration and Personnel, is hereby amended as set out in this ordinance. Sections currently existing in Chapter 2.29 not set out within this ordinance remain unchanged.

2.29.010 Purpose—Authority—General provisions.

A. The purpose of this chapter is to recognize and approve the existing community service officers (CSO) program implemented by the Cheyenne police department and set forth the qualifications for residents interested in serving as community service officers.

B. The chief of police may appoint residents of Laramie County as a CSO to serve under the rules, orders and regulations of the Cheyenne police department. CSO's may be volunteers or, at the discretion of the police chief, paid employees.

C. The CSO program supports the functions of the police department by assisting police officers in the performance of their duties that do not require peace officer statutory authority and are specifically community care-taking functions. CSO's may enforce city ordinances involving municipal violations following an investigation of a traffic crash, parking violations, animal control violations and nuisance control violations, at the direction of the police chief or his or her designee.

D. A subset of the CSO program is further created to provide security services for the protection of life, limb and property at municipal facilities and surrounding premises. This subset shall be known as Municipal Security Officers (MSO's).

2.29.020 Qualifications and training.

A. The following criteria must be met by CSO/MSO applicants to be considered for appointment:

1. CSO's must be ~~At~~ at least eighteen (18) years of age; MSO's must be at least twenty-one (21) years of age;
2. High school diploma or recognized equivalent;
3. Physically able to perform CSO/MSO functions as directed;
4. No felony convictions; and
5. Valid Wyoming driver's license.

B. The chief of police, or designee, will identify, develop and implement an appropriate training program to ensure a CSO/MSO can perform required duties in a professional and competent manner.

C. MSO's must complete a required forty (40) hour training on the use of firearms and complete a minimum of six (6) firearm training days each year.

D. MSO's may, at the direction of the chief of police, be armed with firearms after completion of all MSO basic training as prescribed by the chief of police.

2.29.030 Appointment.

Applicants for the CSO program will be selected for appointment, and retained within the program, at the sole discretion of the chief of police. The chief may establish policies outlining criteria for selection that may include a written test, psychological and medical screening, polygraph assessment and oral interviews.

2.29.040 Oath of office.

Every person appointed by the chief of police as a Community Service Officer shall first be administered an oath acknowledging their intent to fulfill the performance of their duties as defined by the chief of police. The oath may be administered by the mayor, city clerk or deputy city clerk and shall be on file with the office of the city clerk.

2.29.050 Additional responsibilities of Municipal Security Officers.

A. At the Municipal Court Building, MSO's may engage in the following additional functions:

1. Confiscate property including contraband and prohibited items as described and itemized by the standing order of the senior municipal court judge.
2. Transport inmates and prisoners within the court facility.
3. MSO's may transport inmates and prisoners to and from detention facilities and to and from the Cheyenne Municipal Court.

B. In order to protect life, limb and property at municipal facilities and surrounding premises, MSO's have the authority to:

1. Detain an individual, only to the extent necessary, to prevent injury to persons or damage to property.
2. Act in the defense of others to prevent injury.

Section 2. This ordinance shall be in full force and effect upon its approval and publication.

FIRST READING: _____
SECOND READING: _____
THIRD AND FINAL READING: _____

(SEAL)
Attest: _____
Marian J. Orr, Mayor

Kristina F. Jones, City Clerk

Publish: Wyoming Tribune Eagle